



‘Kashphool’

North Kent Bengali
Association Constitution

Constitution

adopted on the.....

PART 1

1. Adoption of the constitution

The association and its property will be administered and managed in accordance with the provisions in Parts 1 and 2 of this constitution.

2. Name

The association's name is

Kashphool

(and in this document it is called the constituted group).

3. Objects

The constituted group's objects ('the objects') are

- To plan and organize religious events pertaining to Hindus across the Ebbsfleet Valley region throughout the year with the sole intention to grow religious and communal harmony, to promote multi culturalism, Indian art, cultures and heritage.
- To organise Hindu festivals by conducting the festivals in the traditional Hindu manner.
- Creating and agreeing on a comprehensive funding plan, inclusive of all estimated expenses and determining how to solicit/raise additional funds if needed
- Managing and participating completely during the event and having a 360 degree feedback as part of event evaluation and follow up

4. Application of income and property

- (1) The income and property of the constituted group shall be applied solely towards the promotion of the objects.
 - (a) A constituted group trustee is entitled to be reimbursed from the property of the constituted group or may pay out of such property reasonable expenses properly incurred by him or her when acting on behalf of the constituted group.
 - (b) A constituted group trustee may benefit from trustee indemnity insurance cover purchased at the constituted group's expense in accordance with, and subject to the conditions in, section 189 of the Charities Act 2011.
- (2) None of the income or property of the constituted group may be paid or transferred directly or indirectly by way of dividend bonus or otherwise by way of profit to any member of the constituted group. This does not prevent a member

who is not also a trustee from receiving:

- (a) a benefit from the constituted group in the capacity of a beneficiary of the constituted group;
- (b) reasonable and proper remuneration for any goods or services supplied to the constituted group.

5. Benefits and payments to constituted group trustees and connected persons

(1) General provisions

No constituted group trustee or connected person may:

- (a) buy or receive any goods or services from the constituted group on terms preferential to those applicable to members of the public;
- (b) sell goods, services or any interest in land to the constituted group;
- (c) be employed by, or receive any remuneration from, the constituted group;
- (d) receive any other financial benefit from the constituted group;

unless the payment is permitted by sub-clause (2) of this clause, or authorised by the court or the Charity Commission ('the Commission'). In this clause, a 'financial benefit' means a benefit, direct or indirect, which is either money or has a monetary value.

(2) Scope and powers permitting trustees' or connected persons' benefits

- (a) A constituted group trustee or connected person may receive a benefit from the constituted group in the capacity of a beneficiary of the constituted group provided that a majority of the trustees do not benefit in this way.
- (b) A constituted group trustee or connected person may enter into a contract for the supply of services, or of goods that are supplied in connection with the provision of services, to the constituted group where that is permitted in accordance with, and subject to the conditions in, section 185 of the Charities Act 2011.
- (c) Subject to sub-clause (3) of this clause a constituted group trustee or connected person may provide the constituted group with goods that are not supplied in connection with services provided to the constituted group by the constituted group trustee or connected person.
- (d) A constituted group trustee or connected person may receive interest on money lent to the constituted group at a reasonable and proper rate which must be not more than the Bank of England bank rate (also known as the base rate).

- (e) A constituted group trustee or connected person may receive rent for premises let by the trustee or connected person to the constituted group. The amount of the rent and the other terms of the lease must be reasonable and proper. The constituted group trustee concerned must withdraw from any meeting at which such a proposal or the rent or other terms of the lease are under discussion.
- (f) A constituted group trustee or connected person may take part in the normal trading and fundraising activities of the constituted group on the same terms as members of the public.

(3) **Payment for supply of goods only - controls**

The constituted group and its constituted group trustees may only rely upon the authority provided by sub-clause 2(c) of this clause if each of the following conditions is satisfied:

- (a) The amount or maximum amount of the payment for the goods is set out in an agreement in writing between the constituted group and the constituted group trustee or connected person supplying the goods ('the supplier') under which the supplier is to supply the goods in question to or on behalf of the constituted group.
- (b) The amount or maximum amount of the payment for the goods does not exceed what is reasonable in the circumstances for the supply of the goods in question.
- (c) The other constituted group trustees are satisfied that it is in the best interests of the constituted group to contract with the supplier rather than with someone who is not a constituted group trustee or connected person. In reaching that decision the constituted group trustees must balance the advantage of contracting with a constituted group trustee or connected person against the disadvantages of doing so.
- (d) The supplier is absent from the part of any meeting at which there is discussion of the proposal to enter into a contract or arrangement with him or her or it with regard to the supply of goods to the constituted group.
- (e) The supplier does not vote on any such matter and is not to be counted when calculating whether a quorum of constituted group trustees is present at the meeting.
- (f) The reason for their decision is recorded by the constituted group trustees in the minute book.
- (g) A majority of the constituted group trustees then in office are not in receipt of remuneration or payments authorised by clause 5.

(4) In sub-clauses (2) and (3) of this clause:

- (a) 'the constituted group' includes any company in which the constituted group:

- i. holds more than 50% of the shares; or
 - ii. controls more than 50% of the voting rights attached to the shares; or
 - iii. has the right to appoint one or more trustees to the board of the company.
- (b) 'connected person' includes any person within the definition set out in clause 34 (Interpretation).

6. Dissolution

- (1) If the members resolve to dissolve the constituted group the trustees will remain in office as constituted group trustees and be responsible for winding up the affairs of the constituted group in accordance with this clause.
- (2) The trustees must collect in all the assets of the constituted group and must pay or make provision for all the liabilities of the constituted group.
- (3) The trustees must apply any remaining property or money:
 - (a) directly for the objects;
 - (b) by transfer to any constituted group or charities for purposes the same as or similar to the constituted group;
 - (c) in such other manner as the Charity Commission for England and Wales ('the Commission') may approve in writing in advance.
- (4) The members may pass a resolution before or at the same time as the resolution to dissolve the constituted group specifying the manner in which the trustees are to apply the remaining property or assets of the constituted group and the trustees must comply with the resolution if it is consistent with paragraphs (a) - (c) inclusive in sub-clause (3) above.
- (5) In no circumstances shall the net assets of the constituted group be paid to or distributed among the members of the constituted group (except to a member that is itself a constituted group).
- (6) The trustees must notify the Commission promptly that the constituted group has been dissolved. If the trustees are obliged to send the constituted group's accounts to the Commission for the accounting period which ended before its dissolution, they must send the Commission the constituted group's final accounts.

7. Amendment of constitution

- (1) The constituted group may amend any provision contained in Part 1 of this constitution provided that:

- (a) no amendment may be made that would have the effect of making the constituted group cease to be a constituted group at law;
 - (b) no amendment may be made to alter the objects if the change would undermine or work against the previous objects of the constituted group;
 - (c) no amendment may be made to clause 3 (Objects), 4 (Application of income and property), clause 5 (Benefits and payments to constituted group trustees and connected persons), clause 6 (Dissolution) or this clause without the prior consent in writing of the Commission or the local governing council.
 - (d) any resolution to amend a provision of Part 1 of this constitution is passed by not less than two thirds of the members present and voting at a general meeting.
- (2) Any provision contained in Part 2 of this constitution may be amended, provided that any such amendment is made by resolution passed by a simple majority of the members present and voting at a general meeting.
 - (3) A copy of any resolution amending this constitution shall be sent to the Commission or the local governing council within twenty one days of it being passed.

Part 2

8. Membership

(1) Eligibility

Membership is open to individuals over eighteen or organisations who are approved by the trustees and meets the below eligibility criteria

- (a) Membership of the Charity is open to anyone who is interested in furthering its objects, and who, by applying for membership, has indicated his, her or its agreement to become a member and acceptance of the duty of members set out in sub-clause (3) of this clause.

Membership is open to individuals over eighteen, who are approved by the Trustees provided the person.

- 1. Accepts and actively supports the objectives of the Charity; and
- 2. Pays an monthly or quarterly or annual membership fee as decided by the Executive Committee.

(2) Admission and Refusal Procedure

- (a) Anyone who meets and agrees to the eligibility criteria in subclause (1) above can apply for membership through a written request to the chair of the constituted group.

- (b) Every written application request will be reviewed by the Executive Committee of the constituted group and the decision to be notified to all members of the constituted group.
- (c) The Executive Committee may only refuse an application for membership if, acting reasonably and properly, they consider it to be in the best interests of the constituted group to refuse the application.
- (d) The Executive Committee must inform the applicant in writing of the reasons for the refusal within twenty-one days of the decision.
- (e) The Executive Committee must consider any written representations the applicant may make about the decision. The Executive Committee's decision following any written representations must be notified to the applicant in writing but shall be final.

(3) Duty / Obligations of all members including Executive Committee

- (a) It is the duty of each member of the constituted group to exercise their powers as a member of the constituted group in good faith and in the way it would most likely further the purposes/objects of the constituted group.
- (b) The obligation of all the members is to remain loyal to the activities or events of the constituted group.
- (c) No members are to participate as members or volunteers in events or activities which is a direct conflict to the events organised by the constituted group.
- (d) If a member wishes to be absent for any personal reason from an event of the constituted group and the absence of the member has a material impact on the conduct of the event, then the member is to discuss the matter with the executive committee and agree a process of mitigation.

(4) Membership Fees

- (a) The constituted group requires all members to pay an annual membership fee to Kashphool. This fee is for membership only and not for the events the constituted group conducts through the year. The amount to be paid is to be decided at the Annual General Meeting and agreed by all members present.
- (b) The annual membership fee can be paid monthly in 12 equal amounts or quarterly in 4 equal amounts. The mode and frequency of membership fees need to be agreed between the constituted group and the member at the time of joining.
- (c) Membership of a person from a family will also include the other direct family members for e.g. parent, spouse, partner, and children. The membership fee will extend to the family as a whole rather than a separate fee for each person in the family.

(5) Membership is not transferable to anyone else.

- (6) The trustees must keep a register of names and addresses of the members which must be made available to any member upon request.

9. Termination of membership

Membership is terminated if:

- (1) the member dies or, if it is an organisation, ceases to exist;
- (2) the member resigns by written notice to the constituted group unless, after the resignation, there would be less than two members;
- (3) any sum due from the member to the constituted group is not paid in full within six months of it falling due;
- (4) the member is removed from membership by a resolution of the trustees that it is in the best interests of the constituted group that his or her membership is terminated. A resolution to remove a member from membership may only be passed if:
 - (a) the member has been given at least twenty one days' notice in writing of the meeting of the trustees at which the resolution will be proposed and the reasons why it is to be proposed;
 - (b) the member or, at the option of the member, the member's representative (who need not be a member of the constituted group) has been allowed to make representations to the meeting.

10. General meetings

- (1) The constituted group must hold an annual general meeting within twelve months of the date of the adoption of this constitution.
- (2) An annual general meeting must be held in each subsequent year and not more than fifteen months may elapse between successive annual general meetings.
- (3) All general meetings other than annual general meetings shall be called special general meetings.
- (4) The trustees may call a special general meeting at any time.
- (5) The trustees must call a special general meeting if requested to do so in writing by at least ten members or one tenth of the membership, whichever is the greater. The request must state the nature of the business that is to be discussed and is relevant to the objective of the constituted group. If the trustees fail to hold the meeting within twenty-eight days of the request, the members may proceed to call a special general meeting but in doing so they must comply with the provisions of this constitution.

11. Notice

- (1) The minimum period of notice required to hold any general meeting of the constituted group is fourteen clear days from the date on which the notice is deemed to have been given.
- (2) A general meeting may be called by shorter notice, if it is so agreed by the trustees.
- (3) The notice must specify the date, time and place of the meeting and the general nature of the business to be transacted. If the meeting is to be an annual general meeting, the notice must say so.
- (4) The notice must be given to all the members and to the trustees.

12. Quorum

- (1) No business shall be transacted at any general meeting unless a quorum is present.
- (2) A quorum is:
 - (a) 5 members entitled to vote upon the business to be conducted at the meeting; or
 - (b) one tenth of the total membership at the time, whichever is the greater.
 - (c) The authorised representative of a member organisation shall be counted in the quorum.
- (3) If:
 - (a) a quorum is not present within half an hour from the time appointed for the meeting; or
 - (b) during a meeting a quorum ceases to be present,the meeting shall be adjourned to such time and place as the trustees shall determine.
- (4) The trustees must re-convene the meeting and must give at least seven clear days' notice of the re-convened meeting stating the date time and place of the meeting.
- (5) If no quorum is present at the re-convened meeting within fifteen minutes of the time specified for the start of the meeting the members present at that time shall constitute the quorum for that meeting.

13. Chair

- (1) General meetings shall be chaired by the person who has been elected as Chair.

- (2) If there is no such person or he or she is not present within fifteen minutes of the time appointed for the meeting, the Secretary shall chair the meeting.
- (3) In absence of both the Chair or Secretary, any member elected by the Executive Committee shall chair the meeting.

14. Adjournments

- (1) The members present at a meeting may resolve that the meeting shall be adjourned.
- (2) The person who is chairing the meeting must decide the date time and place at which meeting is to be re-convened unless those details are specified in the resolution.
- (3) No business shall be conducted at an adjourned meeting unless it could properly have been conducted at the meeting had the adjournment not taken place.
- (4) If a meeting is adjourned by a resolution of the members for more than seven days, at least seven clear days' notice shall be given of the re-convened meeting stating the date time and place of the meeting.

15. Votes

- (1) The Executive Committee will determine the voting procedure prior to each meeting and will be communicated in advance to all the members.
- (2) Each member shall have one vote but if there is an equality of votes the person who is chairing the meeting shall have a casting vote in addition to any other vote he or she may have.
- (3) A resolution in writing signed by each member (or in the case of a member that is an organisation, by its authorised representative) who would have been entitled to vote upon it had it been proposed at a general meeting shall be effective. It may comprise several copies each signed by or on behalf of one or more members.

16. Representatives of other bodies

- (1) Any organisation that is a member of the constituted group may nominate any person to act as its representative at any meeting of the constituted group.
- (2) The organisation must give written notice to the constituted group of the name of its representative. The nominee shall not be entitled to represent the organisation at any meeting unless the notice has been received by the constituted group. The nominee may continue to represent the organisation until written notice to the contrary is received by the constituted group.
- (3) Any notice given to the constituted group will be conclusive evidence that the nominee is entitled to represent the organisation or that his or her authority has been revoked. The constituted group shall not be required to consider whether

the nominee has been properly appointed by the organisation.

17. Officers and trustees

- (1) The constituted group and its property shall be managed and administered by an Executive Committee comprising the officers and other members elected in accordance with this constitution. The officers and other members of the Executive Committee shall be the trustees of the Constituted group and in this constitution are together called 'the trustees'.
- (2) The constituted group shall have the following elected officers
 - (a) A Chair (elected),
 - (b) A Secretary (elected),
 - (c) A Treasurer (elected).
- (3) The constituted group shall also have the below additional officers who will not be elected but will be selected at the first annual general meeting to maintain continuity of objectivities of the constituted group and avoid any disruption.
 - (a) An Associate Treasurer (non elected),
 - (b) An Association Advisor (non elected),
- (4) The elected officers and the non elected additional officers, as stated in clause 17(3), will together form the Executive Committee (or Trustees).
- (5) A trustee must be a member of the constituted group or the nominated representative of an organisation that is a member of the constituted group.
- (6) No one may be appointed a trustee if he or she would be disqualified from acting under the provisions of clause 20.
- (7) The number of trustees shall be not less than three but (unless otherwise determined by a resolution of the constituted group in general meeting) and shall have a maximum capacity of 7 trustees.
- (8) The first trustees (including officers) shall be those persons elected and/or selected as trustees and officers at the meeting at which this constitution is adopted.
- (9) A trustee may not appoint anyone to act on his or her behalf at meetings of the trustees.

18. Appointment of Elected Officers

- (1) The constituted group in the annual general meeting shall elect or re-elect the officers mentioned in clause 17(3).

- (2) The trustees may appoint any person who is willing to act as a trustee. Subject to sub-clause 5(b) of this clause, they may also appoint trustees to act as officers.
- (3) Each of the trustees shall retire with effect from the conclusion of the annual general meeting next after his or her appointment but shall be eligible for re-election at that annual general meeting.
- (4) No-one may be elected a trustee or an officer at any annual general meeting unless prior to the meeting the constituted group is given a notice that:
 - (a) is signed by at least 2 members outside the Executive Committee entitled to vote at the meeting;
 - (b) states the member's intention to propose the appointment of a person as a trustee or as an officer;
 - (c) is signed by the person who is to be proposed to show his or her willingness to be appointed.
- (5)
 - (a) The appointment of a trustee, whether by the constituted group in general meeting or by the other trustees, must not cause the number of trustees to exceed any number fixed in accordance with this constitution as the maximum number of trustees.
 - (b) The trustees may not appoint a person to be an officer if a person has already been elected or appointed to that office and has not vacated the office.

19. Powers of trustees

- (1) The trustees must manage the business of the constituted group and have the following powers in order to further the objects (but not for any other purpose):
 - (a) to raise funds. In doing so, the trustees must not undertake any taxable permanent trading activity and must comply with any relevant statutory regulations;
 - (b) to buy, take on lease or in exchange, hire or otherwise acquire any property and to maintain and equip it for use;
 - (c) to sell, lease or otherwise dispose of all or any part of the property belonging to the constituted group. In exercising this power, the trustees must comply as appropriate with sections 117- 122 of the Charities Act 2011;
 - (d) to borrow money and to charge the whole or any part of the property belonging to the constituted group as security for repayment of the money borrowed. The trustees must comply as appropriate with sections 124 - 126 of the Charities Act 2011, if they intend to mortgage land;
 - (e) to co-operate with other constituted groups, charities, voluntary bodies and

statutory authorities and to exchange information and advice with them;

- (f) to establish or support any charitable trusts, associations or institutions formed for any of the charitable purposes included in the objects;
 - (g) to acquire, merge with or enter into any partnership or joint venture arrangement with any other constituted group formed for any of the objects;
 - (h) to set aside income as a reserve against future expenditure but only in accordance with a written policy about reserves;
 - (i) to obtain and pay for such goods and services as are necessary for carrying out the work of the constituted group;
 - (j) to open and operate such bank and other accounts as the trustees consider necessary and to invest funds and to delegate the management of funds in the same manner and subject to the same conditions as the trustees of a trust are permitted to do by the Trustee Act 2000;
 - (k) to do all such other lawful things as are necessary for the achievement of the objects.
- (2) No alteration of this constitution or any special resolution shall have retrospective effect to invalidate any prior act of the trustees.
 - (3) Any meeting of trustees at which a quorum is present at the time the relevant decision is made may exercise all the powers exercisable by the trustees.

20. Disqualification and removal of trustees

A trustee shall cease to hold office if he or she:

- (1) is disqualified from acting as a trustee by virtue of sections 178 and 179 of the Charities Act 2011 (or any statutory re-enactment or modification of that provision);
- (2) ceases to be a member of the constituted group;
- (3) in the written opinion, given to the constituted group, of a registered medical practitioner treating that person, has become physically or mentally incapable of acting as a trustee and may remain so for more than three months;
- (4) resigns as a trustee by notice to the constituted group (but only if at least two trustees will remain in office when the notice of resignation is to take effect); or
- (5) is absent without the permission of the trustees from all their meetings held within a period of six consecutive months and the trustees resolve that his or her office be vacated.

21. Proceedings of trustees

- (1) The trustees may regulate their proceedings as they think fit, subject to the provisions of this constitution.
- (2) Any trustee may call a meeting of the trustees.
- (3) The secretary must call a meeting of the trustees if requested to do so by a trustee.
- (4) Questions arising at a meeting must be decided by a majority of votes.
- (5) In the case of an equality of votes, the person who chairs the meeting shall have a second or casting vote.
- (6) No decision may be made by a meeting of the trustees unless a quorum is present at the time the decision is purported to be made.
- (7) The quorum shall be two or the number nearest to one-third of the total number of trustees, whichever is the greater or such larger number as may be decided from time to time by the trustees.
- (8) A trustee shall not be counted in the quorum present when any decision is made about a matter upon which that trustee is not entitled to vote.
- (9) If the number of trustees is less than the number fixed as the quorum, the continuing trustees or trustee may act only for the purpose of filling vacancies or of calling a general meeting.
- (10) The person elected as the Chair shall chair meetings of the trustees. In his or her absence, the responsibility will be with the Secretary to chair the meetings.
- (11) If the Chair or Secretary is unwilling to preside or is not present within ten minutes after the time appointed for the meeting, the trustees present may appoint one of their member to chair that meeting.
- (12) The person appointed to chair meetings of the trustees shall have no functions or powers except those conferred by this constitution or delegated to him or her in writing by the trustees.
- (13) A resolution in writing signed by all the trustees entitled to receive notice of a meeting of trustees or of a committee of trustees and to vote upon the resolution shall be as valid and effectual as if it had been passed at a meeting of the trustees or (as the case may be) a committee of trustees duly convened and held.
- (14) The resolution in writing may comprise several documents containing the text of the resolution in like form each signed by one or more trustees.

22. Conflicts of interests and conflicts of loyalties

A constituted group trustee must:

- (1) declare the nature and extent of any interest, direct or indirect, which he or she has in a proposed transaction or arrangement with the constituted group or in any

transaction or arrangement entered into by the constituted group which has not been previously declared; and

- (2) absent himself or herself from any discussions of the constituted group trustees in which it is possible that a conflict will arise between his or her duty to act solely in the interests of the constituted group and any personal interest (including but not limited to any personal financial interest).

Any constituted group trustee absenting himself or herself from any discussions in accordance with this clause must not vote or be counted as part of the quorum in any decision of the constituted group trustees on the matter.

23. Saving provisions

- (1) Subject to sub-clause (2) of this clause, all decisions of the constituted group trustees, or of a committee of the constituted group trustees, shall be valid notwithstanding the participation in any vote of a constituted group trustee:
 - (a) who is disqualified from holding office;
 - (b) who had previously retired or who had been obliged by this constitution to vacate office;
 - (c) who was not entitled to vote on the matter, whether by reason of a conflict of interests or otherwise;

if, without the vote of that constituted group trustee and that constituted group trustee being counted in the quorum, the decision has been made by a majority of the constituted group trustees at a quorate meeting.

- (2) Sub-clause (1) of this clause does not permit a constituted group trustee to keep any benefit that may be conferred upon him or her by a resolution of the constituted group trustees or of a committee of constituted group trustees if, but for sub-clause (1), the resolution would have been void, or if the constituted group trustee has not complied with clause 22 (Conflicts of interests and conflicts of loyalties).

24. Delegation

- (1) The trustees may delegate any of their powers or functions to a committee of two or more trustees but the terms of any such delegation must be recorded in the minute book.
- (2) The trustees may impose conditions when delegating, including the conditions that:
 - (a) the relevant powers are to be exercised exclusively by the committee to whom they delegate;
 - (b) no expenditure may be incurred on behalf of the constituted group except in accordance with a budget previously agreed with the trustees.

- (3) The trustees may revoke or alter a delegation.
- (4) All acts and proceedings of any committees must be fully and promptly reported to the trustees.

25. Irregularities in proceedings

- (1) Subject to sub-clause (2) of this clause, all acts done by a meeting of Trustees, or of a committee of trustees, shall be valid notwithstanding the participation in any vote of a trustee:

- (a) who was disqualified from holding office;
- (b) who had previously retired or who had been obliged by the constitution to vacate office;
- (c) who was not entitled to vote on the matter, whether by reason of a conflict of interests or otherwise;

if, without:

- (d) the vote of that trustee; and
- (e) that trustee being counted in the quorum,

the decision has been made by a majority of the trustees at a quorate meeting.

- (2) Sub-clause (1) of this clause does not permit a trustee to keep any benefit that may be conferred upon him or her by a resolution of the trustees or of a committee of trustees if the resolution would otherwise have been void.

- (3) No resolution or act of

- (a) the trustees
- (b) any committee of the trustees
- (c) the constituted group in general meeting

shall be invalidated by reason of the failure to give notice to any trustee or member or by reason of any procedural defect in the meeting unless it is shown that the failure or defect has materially prejudiced a member or the beneficiaries of the constituted group.

26. Minutes

The trustees must keep minutes of all:

- (1) appointments of officers and trustees made by the trustees;

- (2) proceedings at meetings of the constituted group;
- (3) meetings of the trustees and committees of trustees including:
 - (a) the names of the trustees present at the meeting;
 - (b) the decisions made at the meetings; and
 - (c) where appropriate the reasons for the decisions.

27. Accounts, Annual Report, Annual Return

- (1) The trustees must comply with their obligations under the Charities Act 2011 with regard to:
 - (a) the keeping of accounting records for the constituted group;
 - (b) the preparation of annual statements of account for the constituted group;
 - (c) the transmission of the statements of account to the Commission;
 - (d) the preparation of an Annual Report and its transmission to the Commission;
 - (e) the preparation of an Annual Return and its transmission to the Commission.
- (2) Accounts must be prepared in accordance with the provisions of any Statement of Recommended Practice issued by the Commission, unless the trustees are required to prepare accounts in accordance with the provisions of such a Statement prepared by another body.
- (3) **Bank Accounts**
 - (a) The charity will operate a bank account to carry out the financial transaction of the association.
 - (b) All cheques to be signed and payments / transfer to be made by the treasurer and the assistant treasurer after confirmation from the Chair and the Secretary.
 - (c) No cheque shall be issued or any payments / transfer to be made on behalf of the constituted group without the signature of two signatories.

28. Property

- (1) The trustees must ensure the title to:
 - (a) all land held by or in trust for the constituted group that is not vested in the Official Custodian of Charities; and

- (b) all investments held by or on behalf of the constituted group, is vested either in a corporation entitled to act as custodian trustee or in not less than three individuals appointed by them as holding trustees.
- (2) The terms of the appointment of any holding trustees must provide that they may act only in accordance with lawful directions of the trustees and that if they do so they will not be liable for the acts and defaults of the trustees or of the members of the constituted group.
- (3) The trustees may remove the holding trustees at any time.

29. Repair and insurance

The trustees must keep in repair and insure to their full value against fire and other usual risks all the buildings of the constituted group (except those buildings that are required to be kept in repair and insured by a tenant). They must also insure suitably in respect of public liability and employer's liability.

30. Notices

- (1) Any notice required by this constitution to be given to or by any person must be:
 - (a) in writing; or
 - (b) given using electronic communications.
- (2) The constituted group may give any notice to a member either:
 - (a) personally; or
 - (b) by sending it by post in a prepaid envelope addressed to the member at his or her address; or
 - (c) by leaving it at the address of the member; or
 - (d) by giving it using electronic communications to the member's address.
- (3) A member who does not register a postal or an email address with the constituted group or who registers only a postal address that is not within the United Kingdom shall not be entitled to receive any notice from the constituted group.
- (4) A member present in person at any meeting of the constituted group shall be deemed to have received notice of the meeting and of the purposes for which it was called.
- (5)
 - (a) Proof that an envelope containing a notice was properly addressed, prepaid and posted shall be conclusive evidence that the notice was given.
 - (b) Proof that a notice contained in an electronic communication was sent shall be conclusive evidence that the notice was given.
 - (c) A notice shall be deemed to be given 48 hours after the envelope

containing it was posted or, in the case of an electronic communication, 48 hours after it was sent.

31. Rules

- (1) The trustees may from time to time make rules or bye-laws for the conduct of their business.
- (2) The bye-laws may regulate the following matters but are not restricted to them:
 - (a) the admission of members of the constituted group (including the admission of organisations to membership) and the rights and privileges of such members, and the entrance fees, subscriptions and other fees or payments to be made by members;
 - (b) the conduct of members of the constituted group in relation to one another, and to the constituted group's employees and volunteers;
 - (c) the setting aside of the whole or any part or parts of the constituted group's premises at any particular time or times or for any particular purpose or purposes;
 - (d) the procedure at general meeting and meetings of the trustees in so far as such procedure is not regulated by this constitution;
 - (e) the keeping and authenticating of records. (If regulations made under this clause permit records of the constituted group to be kept in electronic form and requires a trustee to sign the record, the regulations must specify a method of recording the signature that enables it to be properly authenticated.)
 - (f) generally, all such matters as are commonly the subject matter of the rules of an unincorporated association.
- (3) The constituted group in general meeting has the power to alter, add to or repeal the rules or bye-laws.
- (4) The trustees must adopt such means as they think sufficient to bring the rules and bye-laws to the notice of members of the constituted group.
- (5) The rules or bye-laws shall be binding on all members of the constituted group. No rule or bye-law shall be inconsistent with, or shall affect or repeal anything contained in, this constitution.

32. Disputes

If a dispute arises between members of the constituted group about the validity or propriety of anything done by the members under this constitution, and the dispute cannot be resolved by agreement, the parties to the dispute must first try in good faith to settle the dispute by mediation before resorting to the Executive Committee to hear the

dispute and resolve the issue.

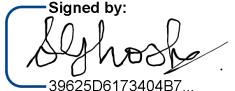
33. Interpretation

In this constitution 'connected person' means:

- (1) a child, parent, grandchild, grandparent, brother or sister of the trustee;
- (2) the spouse or civil partner of the trustee or of any person falling within sub-clause (1) above;
- (3) a person carrying on business in partnership with the trustee or with any person falling within sub-clause (1) or (2) above;
- (4) an institution which is controlled -
 - (a) by the trustee or any connected person falling within sub-clause (1), (2), or (3) above; or
 - (b) by two or more persons falling within sub-clause (4)(a), when taken together
- (5) a body corporate in which -
 - (a) the constituted group trustee or any connected person falling within sub-clauses (1) to (3) has a substantial interest; or
 - (b) two or more persons falling within sub-clause (5)(a) who, when taken together, have a substantial interest.
- (6) Sections 350 - 352 of the Charities Act 2011 apply for the purposes of interpreting the terms used in this clause.

Signatures

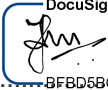
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2/8/2025

Chair.....
[Shayonee Ghosh]

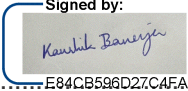
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2/8/2025

Secretary.....
[Joy Sen]

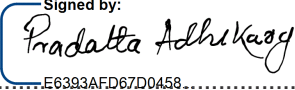
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2/8/2025

Treasurer.....
[Kaushik Banerjee]

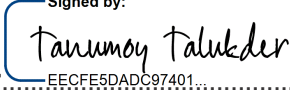
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2/8/2025

Assistant Treasurer.....
[Pradatta Adhikary]

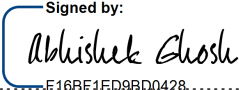
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2/9/2025

Association Advisor.....
[Tanumoy Talukder]

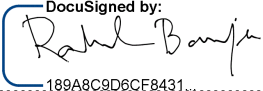
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2/9/2025

Member 1.....
[Abhishek Ghosh]

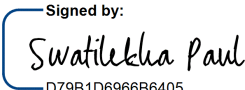
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2/10/2025

Member 2.....
[Rahul Banerjee]

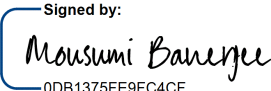
Signed by:



2/9/2025

Member 3.....
[Swatilekha Paul]

Signed by:



2/9/2025

Member 4.....
[Mousumi Banerjee]

Signed by:



2/8/2025

Member 5.....
[Nilanjana Sen]